

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.** _____
JAQUAN MONROE, **Purchased** _____

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK, and
DETECTIVE LINCOLN ARCHAMBEAU
(Shield # 1259),**

SUMMONS

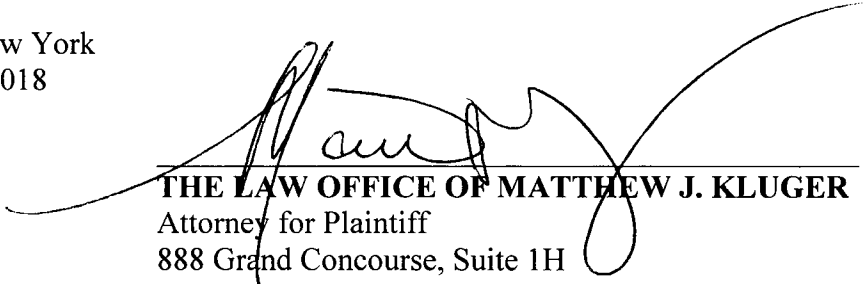
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 11, 2018


THE LAW OFFICE OF MATTHEW J. KLUGER
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, New York 10451
(718) 293-4900

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

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JAQUAN MONROE,**Plaintiff****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK, and
DETECTIVE LINCOLN ARCHAMBEAU
(Shield # 1259),****Defendants.**

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Plaintiff JAQUAN MONROE, by and through his attorney Matthew J. Kluger,
complaining of the defendants, respectfully shows to this Court and alleges the following
upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JAQUAN MONROE was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant DETECTIVE LINCOLN ARCHAMBEAU, Shield # 1259 ("DET. ARCHAMBEAU") was and is a detective employed by Defendants.

BACKGROUND

5. On November 19, 2015, Plaintiff JAQUAN MONROE was forcibly brought by members of the New York City Police Department to the 48th Precinct in the Bronx where, without just cause or provocation, Defendants, including DET. LINCOLN ARCHAMBEAU, a detective with defendant NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Murder 2°, Manslaughter 2°, Criminal Possession of a Weapon 2°, and related charges.
6. Thereafter, on or about November 20, 2015, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff was commenced.
7. Plaintiff remained incarcerated at the 48th Police Precinct, Bronx Central Booking, the Vernon C. Bain Center (VCBC), and the Brooklyn Detention Complex (BKDC) until Plaintiff posted bail and was released from custody on or about August 15, 2016.
8. The criminal matter was terminated in favor of Plaintiff following a jury verdict of Not Guilty on April 10, 2017.

PROCEDURAL POSTURE

9. On or about May 17, 2017, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim

arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice, and defendant

CITY has failed to pay or adjust this claim.

11. A 50-H hearing was held on May 15, 2018.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.

16. The Defendants, their agents, servants and employees, intended to confine Plaintiff. This confinement was not privileged or authorized by any warrant, order, or other legal right.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries and was physically attacked by other inmates. Plaintiff was denied liberty for approximately nine (9) months and suffered emotional distress, humiliation, intimidation, and fear for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

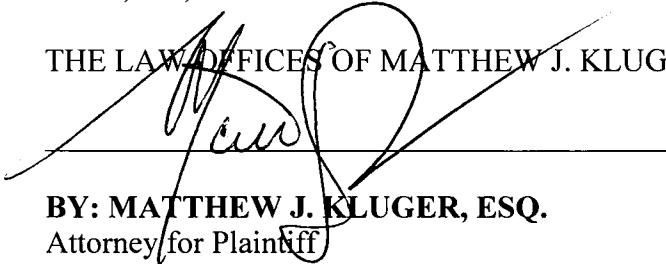
18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.
19. In arresting Plaintiff, the Defendants acted with malice.
20. Defendants lacked probable cause to arrest Plaintiff. From video, testimonial, and other evidence, the defendants were aware of the identity, motive, and whereabouts of the *actual* perpetrator of the crimes for which Plaintiff was falsely accused. Nevertheless, defendants arrested, prosecuted, and detained Plaintiff until he was ultimately acquitted by jury on April 10, 2017.
21. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including physical injury, loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.
22. Pursuant to CPL 160.50, all official records and papers relating to this case are sealed as a result of Plaintiff's acquittal.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
June 11, 2018

Yours, etc.,

THE LAW OFFICES OF MATTHEW J. KLUGER



BY: MATTHEW J. KLUGER, ESQ.

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, New York 10451
(718) 293-4900

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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JAQUAN MONROE,

Plaintiff

Index No. _____

Purchased: _____

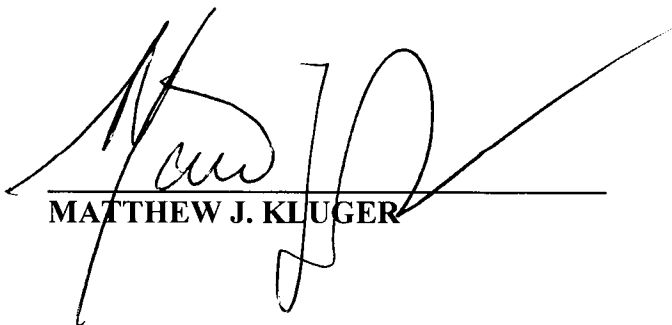
-against-

**THE CITY OF NEW YORK, and
DETECTIVE LINCOLN ARCHAMBEAU
(Shield # 1259),**

Defendants
-----X

I, **MATTHEW J. KLUGER**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
June 11, 2018



MATTHEW J. KLUGER